MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS COMMITTEE OF THE WHOLE

Approved 2/19/2025 Jm

225 W. Main St.
Harrison, Michigan 48625

~~Un~~approved minutes
February 5, 2025

Meeting was called to order at 9:00 a.m. by Chairman George Gilmore.

Pledge of Allegiance to the Flag of the United States of America

COMMISSIONERS PRESENT

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Jacob Gross, District 4 Jeff Haskell, District 5 David Hoefling, District 6 Jack Kleinhardt, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

None

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Deputy Clerk & Register of Deeds Isha Walter, Administrator Lori Phelps and members of the public

APPROVAL OF AGENDA

It was moved by Commissioner Majewski, seconded by Commissioner Fancon to approve the agenda as amended, **motion carried.**

*Add Administrator Lori Phelps report under Finance and Administration after committee assignments and removed closed session legal written opinion discussion because the attorney is sick and cannot attend.

JUSTICE

1. Honorable Judge Farrell and Lisa Ashley – Recovery Court Discussion
   Judge Farrell and Recovery Court Director Lisa Ashley presented an update for the Clare and Gladwin County's Recovery and Veterans Treatment Court Programs. The programs are set to provide assistance to veterans and non-veterans that appear before the courts with substance abuse related cases. They encouraged the Board of Commissioners to attend a session held every other Thursday so they can witness this great program.

FINANCE AND ADMINISTRATION

1. Committee Assignment Review, Revisions and Discussion
   Commissioner Hoefling requested to remain on the MidMichigan Community Action Agency Committee since he has established relationships. Commissioner Ambrozaitis pointed out a correction for the Airport Committee meeting day and time, it is held the 4th Tuesday at 4:00 p.m.

   It was moved by Commissioner Housler, seconded by Commissioner Haskell to approve the Clare County Commissioners Committee Assignments as amended, **motion carried.**

2. Administrator Lori Phelps Report
   Administrator Phelps informed the Board of Commissioners that MCL 46.30 indicates that the Board of Commissioners must be made aware that Commissioner Jacob Gross' family owns Harrison Family Pharmacy and Clare County uses that pharmacy for the inmate's prescription drugs. Administrator Phelps confirmed this relationship was not established because Mr. Gross is a Commissioner.

FINANCE AND ADMINISTRATION - continued

3. Wage Discussion and Committee Recommendation
   The Wage and Personnel Committee met to discuss the wages for the Prosecuting Attorney. Clare County is substantially lower than average compared to similar counties. The committee recommends three-year step increases his first year increase would be to $105,000.00, second year increase to $110,000.00 and third year increase to $115,000.00. Commissioner Gilmore and Administrator Phelps confirmed that these wage increases would not increase the Prosecutor's budget. The Prosecuting Attorney will take the increase from other areas of his budget.

   It was moved by Commissioner Majewski, seconded by Commissioner Fancon to accept the recommendations of the Wage Committee for the Prosecutor's office, roll call vote revealed:

   Yeas: (8) being Commissioners Majewski, Fancon, Housler, Kleinhardt, Gross, Gilmore, Hoefling and Haskell
   Nays: (1) being Commissioner Ambrozaitis
   Absent: (0)
   Motion carried

4. Election Consolidation & Ballot Programming Discussion
   Administrator Phelps outlined the election costs that are the responsibility of the County and the local units. Ballot programming is a responsibility of the local units. Historically the County Clerk's office has programmed the ballot and the County Commissioners have not charged the local units for that service. Administrator Phelps confirmed that with the massive changes in election laws that the previous duties associated with elections have become more labor intensive.

   Administrator Phelps reminded the Commissioners that in 2023 the Board approved the hiring of an election coordinator because of the additional election duties including the County Clerk's office running early voting for the local units. The Board of Commissioners then approved to pay for the election consolidation for early voting throughout 2024 to ease the burden on the local units.

   Administrator Phelps provided the Commissioners with information regarding all the costs the County paid and was later reimbursed by the State, for early voting in 2024. She then combined those costs with a proposed programming stipend to the County Clerk in the amount of $5,004.00 per election and proposed a charge to the townships and cities as follows:

   $480.00 per election in which there will be early voting and programming of ballots.

   $278.00 per election in which there is no early voting and only programming of ballots.

   Administrator Phelps confirmed that she has reached out to all 18 local clerks and heard back from 12 of them. All 12 local clerks want the County Clerk to continue to program the ballots and they thought there was a good chance their local boards would approve the proposed amounts.

   Commissioner Majewski expressed concern regarding paying the County Clerk a stipend to program the ballot at the county building while using county equipment and performing a task in which the county paid for the training. Administrator Phelps confirmed that the County Clerk is an employee of the County and would be paid just like any other employee that has to be sent to training to perform a job.

FINANCE AND ADMINISTRATION - continued

4. Election Consolidation & Ballot Programming Discussion - continued
   It was moved by Commissioner Hoefling, seconded by Commissioner Haskell to develop a contract between the townships and the County Clerk for programming ballots and early voting consolidation with Clare County as the fiduciary, **motion carried.**

5. Maintenance Department
   Administrator Phelps made the Board of Commissioners aware of a future request for approval for a credit card for the Maintenance Department in the amount of $3,000.00 and replacement of some courthouse windows.

6. Hiring Freeze
   Commissioner Gilmore brought forward the recommendation of the Wage and Personnel Committee for a county-wide hiring freeze because of the uncertainty of federal and state budgeting and confirmed all employee replacements will need to be approved by the Board of Commissioners.

   It was moved by Commissioner Kleinhardt, seconded by Commissioner Fancon to approve a hiring freeze until further notice, **motion carried.**

7. Check Signing
   Commissioner Gilmore noted that the Wage and Personnel Committee proposed that because the check signing is not a statutory duty of the Clerk's office the Board of Commissioners should turn the check signing over to the Administrator and have the Clerk verify the checks. Clerk Lori Mott opposed that recommendation citing checks and balances noting that the Administrator handles purchasing, approving all department purchases and as the Department Head of Accounts Payable, will now be controlling the payment of all those invoices. Clerk Mott confirmed they would be totally removing the checks and balances.

   It was moved by Commissioner Fancon, seconded by Commissioner Majewski to take check signing out of the Clerk's office, roll call vote revealed:

   Yeas: (6) being Commissioners Majewski, Fancon, Housler, Kleinhardt, Gilmore, and Haskell
   Nays: (3) being Commissioners Ambrozaitis, Hoefling and Gross
   Absent: (0)
   Motion carried

CLOSED SESSION

It was moved by Commissioner Majewski, seconded by Commissioner Housler to go into closed session to discuss the settlement strategy in the pending lawsuit Slater v. Clare County Sheriff's Office, et al, Case No. 24-900176-NO, Pursuant to MCL 15.268, roll call vote revealed:

Yeas: (9) being Commissioners Majewski, Gross, Fancon, Kleinhardt, Hoefling, Housler, Ambrozaitis, Gilmore and Haskell
Nays: (0)
Absent: (0)
Motion carried

Entered into closed session at 9:55 a.m.
Back in open session at 10:07 a.m.

It was moved by Commissioner Hoefling, seconded by Commissioner Haskell to approve the settlement as presented in the lawsuit Slater v. Clare County Sheriff's Office, et al, Case No. 24-900176-NO, roll call vote revealed:

Yeas: (9) being Commissioners Hoefling, Haskell, Majewski, Gross, Fancon, Kleinhardt, Housler, Ambrozaitis and Gilmore
Nays: (0)
Absent: (0)
Motion carried

PUBLIC COMMENT

A member of the community expressed his disappointment regarding the Commissioners Committee Assignments, more specifically the Airport Committee. Chairman Gilmore commented that assignments were balanced and diversity among the committees is a great idea.

Clerk Lori Mott asked to fill one of the two vacant positions in her office. Commissioner Gilmore confirmed Administrator Phelps that there was in fact a vacancy that occurred two weeks prior. Administrator Phelps urged the Commissioners to approve the Clerk's request as the vacancy was with the Court Clerk staff and that position is needed.

It was moved by Commissioner Ambrozaitis, seconded by Commissioner Gross to allow Clerk Mott to hire for the vacant position in the Clerk's office, **motion carried**.

Commissioner Kleinhardt made a suggestion for the Board of Commissioners to look into changing law firms. Administrator Phelps can look into other options for a litigation firm.

Meeting adjourned at 10:19 a.m.

Lori Mott, Clerk
Clare County Board of Commissioners

George Gilmore, Chairman
Clare County Board of Commissioners